

25TRCV00344 25TRCV00344

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-24

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Case Number: 25TRCV00344 Hearing Date: June 24, 2026 Dept: B

Moving Parties: Plaintiff Jason Kim

Responding Party: Defendant American Honda

Motor Co., Inc.

Motion for Evidentiary,

Issue, and/or Terminating Sanctions

The Court considered the moving, opposition, and reply papers.

RULING

See

below.

BACKGROUND

On January

31, 2025, plaintiff Jason Kim filed a complaint against American Honda Motor Co.,

Inc. for violations of statutory obligations under the Song-Beverly Consumer

Warranty Act regarding a 2022 Acura MDX, purchased on September 25, 2022. Plaintiff alleges that after plaintiff took

possession of the vehicle and during the warranty period, the vehicle contained

or developed the following: HVAC defect,

leak defect, water intrusion defect, mold defect, trim defect, and speaker

rattle noise defect.

On

March 10, 2026, the Court granted plaintiff's motion to compel defendant's PMQ

to appear and testify at deposition. The Court ordered defendant to produce its PMQ for deposition within twenty days.

On May 22, 2026, the Court denied plaintiff's motion to compel compliance with the Court's March 10, 2026 order compelling deposition of defendant's PMQ.

On May 28, 2026, plaintiff filed the herein motion.

Trial is scheduled for July 20, 2026.

LEGAL AUTHORITY

If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. CCP § 2025.450(h) (depositions); § 2030.290(c) (interrogatories); § 2031.300(c) (demands for production of documents). CCP § 2023.030 provides that, "[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . . [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process" CCP § 2023.010 provides that "[m]isuses of the discovery process include, but are not limited to, the following: . . . (d) Failing to respond or to submit to an authorized method of discovery. . . . (g) Disobeying a court order to provide discovery. . . ."

"The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.' . . . [C]ontinuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse." *Doppes v. Bentley Motors, Inc.* (2009)

174 Cal. App. 4th 967, 992 (citation omitted).

“The

trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances:

[the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” *Los Defensores, Inc. v. Gomez* (2014) 223 Cal. App. 4th 377, 390 (citation omitted).

“Generally, ‘[a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’” *Id.* (citation omitted).

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trial court has broad discretion to impose discovery sanctions, but there must be a failure to comply with a valid court order, and the failure must be willful. *Biles v. Exxon Mobil Corp.*

(2004) 124 Cal. App. 4th 1315, 1327 (citation omitted). The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. *Deyo v. Kilbourne* (1978) 84 Cal. App. 3d 771, 788.

DISCUSSION

Plaintiff

Jason Kim requests that the Court impose evidentiary, issue, and/or terminating sanctions against defendant for defendant’s “willful and continuing failure to comply with this Court’s March 10, 2026 Order.”

Plaintiff also requests monetary sanctions in the amount of \$2520 but it was not properly noticed.

As

stated above, on March 10, the Court ordered defendant to produce its PMQ within twenty days, by March 30.

Plaintiff

asserts that defendant “has made no effort whatsoever to comply.” Plaintiff notes that he had filed a motion to compel compliance with the March 10 order but that it was denied because no such procedural vehicle exists.

Plaintiff argues that defendant's "willful non-compliance" is not an isolated event as plaintiff first noticed the PMQ deposition on July 17, 2025 and chronicles plaintiff's counsel's efforts to obtain the PMQ deposition.

As for issue and evidentiary sanctions, plaintiff explains that the PMQ deposition covers nineteen categories of examination set forth in plaintiff's amended PMQ deposition notice and seeks sanctions according to those categories. Plaintiff further argues that although his primary request is for issue and evidentiary sanctions, the Court has authority to impose terminating sanctions.

In opposition, defendant argues that monetary sanctions should be denied because, as the Court noted above, it was not properly noticed as required under CCP §2023.040. Defendant then argues that plaintiff has improperly sought the "most severe non-monetary sanctions" without having first pursued lesser sanctions, as in monetary sanctions. Defendant further contends that the motion "is now unnecessary" as the parties are currently engaged in mediation and that in the event that the case does not settle at mediation, defendant will provide available dates. Defendant also argues that plaintiff has not been prejudiced because it has the benefit of defendant's written discovery.

In reply, plaintiff acknowledges that the notice was defective as to monetary sanctions but argues that California law does not require that the Court issue monetary sanctions before the other sanctions where, as here, the Court has already issued an order and the violation is willful. Plaintiff also asserts that the incremental approach is not a rigid rule. Plaintiff further argues that a pending mediation does not suspend a party's discovery obligations or insulate it from the consequences of court order violations. Plaintiff argues that issue and evidentiary sanctions remain necessary and proportionate.

The Court rules as follows: The Court finds that defendant has engaged in conduct that is a misuse of the discovery process by failing to produce its PMQ for noticed depositions, and has willfully failed to comply with the Court's March 10, 2026 order compelling defendant to produce its PMQ for deposition within twenty days. Defendant

acknowledges that it has not produced its PMQ more than three months since the order. Defendant has not shown that the failure was not willful. In fact, defendant acknowledges it was willful, explaining that it has not complied because the parties are currently engaged in mediation. That, however, is not justification for failing to comply with the order.

The
motion is GRANTED.

ORDER

The
motion is GRANTED.

The
Court finds that issue and/or evidentiary preclusion sanctions are warranted. Counsel should be prepared to discuss the scope of sanctions at the motion hearing.